

12 Appendix 1 – Definitions

For the purpose of these Instructions the following definitions apply:

“Carrier”, in the context of exit, means the person who takes the goods, or who assumes responsibility for the carriage of the goods, out of the customs territory of the Union.

However,

- (i) In the case of combined transportation, where the active means of transport leaving the customs territory of the Union is only transporting another means of transport which, after the arrival of the active means of transport at its destination, will move by itself as an active means of transport, “carrier” means the person who will operate the means of transport which will move by itself once the means of transport leaving the customs territory of the Union has arrived at its destination.
- (ii) In the case of maritime or air traffic under a vessel sharing or contracting arrangement, “carrier” means the person who concludes a contract, and issues a bill of lading or air waybill, for the actual carriage of the goods out of the customs territory of the Union.

(Article 5(40)(b) of the UCC refers)

Note: For example, a Ro-Ro ferry carrying lorries falls under part (i) above. The Ro-Ro ferry is the “active means of transport leaving the customs territory of the Union” and the lorry is “another means of transport which, after the arrival of the active means of transport at its destination, will move by itself as an active means of transport”.

“Customs airport” means any place appointed by the Commissioners, in consultation with the Minister for Transport, Tourism & Sport, as an airport for the landing or departure of aircraft for the purpose of the enactments relating to customs. An airport can be a Type I or Type II if subject to any restrictions on the time of arrival or origin of aircraft or a requirement to give prior notification to Revenue of arrivals.

(Sections 2 and 6 of the Customs Act 2015 refer)

“Customs authorities” means the customs administrations of the Member States responsible for applying the customs legislation and any other authorities empowered under national law to apply certain customs legislation.

(Article 5(1) of the UCC refers)

“Customs controls” means specific acts performed by the Revenue to ensure compliance with the customs legislation and other legislation governing the entry, exit, transit, movement, storage and end-use of goods moved between the customs territory of the Union and countries or territories outside that territory, and the presence and movement within the customs territory of the Union of non-Union goods and goods placed under the end-use procedure.

(Article 5(3) of the UCC refers)